U.P. POWER TRANSMISSION CORPORATION LIMITED

RE-TENDER SPECIFICATION NO. ET-23/ ETC(A)/2024-25

Work of SCADA integration against increasing capacity at 220 KV S/S Sirsaganj under ETD-Firozabad

SUPERINTENDING ENGINEER,
ELECTRICITY TRANSMISSION CIRCLE,
U.P. POWER TRANSMISSION CORPORATION LTD.,
KAKRAITHA ROAD , NEAR AMAR UJALA PRESS, SIKANDRA
AGRA (UTTAR PRADESH)
Mob. No. 9458096415
E-mail : setagra@upptcl.org
e-tender website:- www.etender.up.nic.in

Cost of Tender	:	**Rs. 1770 .00** **(Cost of tender document Rs. 1500.00** **GST Rs. 270.00)**
Earnest Money (EMD)	:	**Rs. 30,000.00**
PART-1 & PART-2 Last Date & Time of Submission of the tender.	:	**14.10.2024 at 12:00 Hrs.**
Date & Time of Opening of Tender **(PART-1).**	:	**15.10.2024 at 12.00 Hrs.**
PART-2 Date & Time of Opening of Tender (Price Bid)	:	**To be informed on website : etender.up.nic.in**

U.P. POWER TRANSMISSION CORPORATION LIMITED

RE-TENDER NOTICE AGAINST E-TENDER No. E.T-23/ ETC (A) / 2024-25 THROUGH E-TENDERING

E-Tenders in two parts, Part-I & Part-II, are invited for work of SCADA integration against increasing capacity at 220 KV S/S Sirsaganj under ETD Firozabad (***Tenderer must have Work Experience of SCADA integration & SCADA Maintenance at 220 KV Sub-Station and above Voltage Level in UPPTCL / Power Grid / State & Central is required and follow the Rules & Regulation of Electrical Safety license from Electrical Safety Deptt. of U.P. , Labour , ESI & EPF Laws / Act)***. Part-I of the bid shall contain earnest money deposit of Rs, **30,000.00 (Rs. Thirty Thousand only),** To be directly credited in Circle Account of "**Executive Engineer (A) Electricity Transmission Circle Agra" through RTGS/NEFT** , along with **Documentary Evidences/ Slip** in support of Pre-qualifying Condition, technical and commercial terms and conditions etc. Part-II shall contain price bid only. Tender shall received on E-Tender Website www.etender.up.nic.inup to 12:00 hrs on dated 14.10.2024 and will be opened at 12.00 hrs on dated 15.10.2024. In case of public holiday on the above date, submission/opening will be on next working day at the same time.

Sl. No.	Description	Tender No.	Earnest Money (Rs.)	Schedule date & time of submission	Schedule date & time of opening	Cost of Tender Document including 18% GST charges(Rs)
1	2	3	4	5	6	7
1	Work of SCADA integration against increasing capacity at 220 KV S/S Sirsaganj under ETD Firozabad	E.T.No-23/ ETC (A) / 2024-25	30,000.00 (Rs. Thirty Thousand only) To be directly credited in Circle Account of "**Executive Engineer (A) ETC Agra"** through RTGS/NEFT	14.10.2024 12:00 hrs	15.10.2024 12.00 hrs	Rs 1770.00 To be directly credited in Circle Account of "**Executive Engineer (A) ETC Agra"** through RTGS/NEFT

Tender documents can be downloaded from e-procurement website etender.up.nic.in and tenderer will be required to pay a non-refundable fee of Rs. 1770.00 (Cost 1500.00 + GST Rs 270.00 @18%) To be directly credited in Circle Account of "**Executive Engineer (A) Electricity Transmission Circle Agra" through RTGS/NEFT**. Tenders can be submitted only on e-procurement website etender.up.nic.in up to scheduled date and time. Tenderers are requested to get themselves registered with U.P. Electronics Corporation, Lucknow so as to obtain digital signature for participation.

Documentary Evidence / **Slip of** RTGS/NEFT of Tender Cost & Earnest money **(Having Details of UTR No. Date, Bank Account No., Amount , Firm Name& scanned copy of pay in slip countered sign by the tenderer etc**) should be uploaded with Part-I of tender Bid on E-Tender Website etender.up.nic.in. The Tender Cost and Earnest Money should be transferred from the account of the firm only

Participating in tenders without uploading of Documentary Evidence of RTGS/NEFT of Tender Cost & Earnest money (Having Details of UTR No. Date, Bank Account No. , Amount , Firm Name & scanned copy of pay in slip countered sign by the tenderer etc) & GST Registration shall not be accepted and their Part-II shall not be opened. Date of opening of Part-II shall be intimated to qualifying bidders later.

Detail of Earnest Money & Tender Cost		
1	Name of officer	**Executive Engineer (A) ETC Agra**
2	Account No.	**10142010241**
3	Bank Name	State Bank of India
4	Bank Branch	T.P.Nagar Agra
5	IFSC Code	**SBIN0005556**

Undersigned reserves the right to accept or reject any offer without assigning any reason. Please visit website www.etender.up.nic.in regularly for any corrections /amendments /modification / extension till the date of submission of tender.

Note :- 1. The tender without above work Experience, Electrical Safety license from Electrical Safety Deptt of U.P., Labour , EPF, ESI & GST registration shall not be accepted.

2 If any departmental (UPPCL/UPPTCL) proceeding is in process against the firm then Part-2 will not be opened.

3. MSME Registration shall not be accepted in work tender and the EMD & Tender Cost credited in official Account..

Office Of the
Superintending Engineer
Electricity Transmission Circle Agra
Kakraitha Road, Near Amar Ujala Press, Sikandara ,
Agra (Uttar Pradesh)
Mob. No. 9458096415
Email : setagra@upptcl.org
e-tender website:-www.etender.up.nic.in

"SAVE ELECTRICITY IN THE INTEREST OF NATION"

PRE QUALIFYING CONDITION OF TENDER

The price bid of only those firms shall be opened, who fulfilled the following Pre-Qualifying conditions.

The tenderers are desired to submit the following documents in support of the same in Part-I of the tender failing the qualified conditions, the Part-II (Price bid) of the tender shall not be opened. However, more issue of tender documents shall not entitle the tenderer for opening of price bid (Part-II), if he does not fulfill pre-qualifying conditions at the time of opening of part-I of the tender.

1. Scanned copy of duly filled Tender Form (Schedule-A, B & C) and Earnest Money & Cost of Tender Form in prescribed shape (copy of UTR No. & Pay in Slip of transfer of money through RTGS/NEFT). The tenderers are required furnish Tender Cost and Earnest Money separately in Prescribed shape (Copy of UTR No. & Pay in Slip of transfer of money through RTGS/NEFT in Favour of **Executive Engineer (A) , ETC Agra (Current A/C No. 10142010241, IFSC: SBIN0005556, State Bank of India T.P. Nagar Agra).** Full amount of tender cost & Earnest Money in single transaction. Multiple money transactions will not be considered and technical bid will be rejected.

(i) Tender Cost : The Part-I of the Tender Bid shall contain the Tender Cost, amounting to **Rs.1770/-** Including GST as Pre Qualification for tenderer.

(ii) Earnest Money : The Part-I of Tender Bid shall contain the Earnest money, amounting to **Rs. 30,000/-** as Pre-Qualification for tenderer.

(iii) The Tenderers who are duly **registered with GST** and have obtained Income Tax Clearance Certificate.

(iv) The Tenderers, who have sound financial background and work/supply ordered on them is not likely to be affected due to financial constraints of the Tenderers.

2. The Bidder shall furnish Copy of latest income Tax clearance certificate/Return filed and PAN Card, self certified.

3. Copy of G.S.T. registration certificate self-certified.

4. It is essential for tenderer to have ***Electrical Safety License from Electrical Safety Deptt. of U.P.*, Labour , ESI & EPF Law / Act registration.**

5. ***It is essential for tenderer to have Work Experience of SCADA integration & SCADA Maintenance at 220 KV Sub-Station and above Voltage Level in UPPTCL/ Power Grid / State & Central Govt. Tenderers should enclose proof of their experience indicating name of Department – Order / Agreement No. - Date of execution of job and work completion Certificate.***

6. It is essential for tenderer to have work experience of ***single agreement of 80% OR 2 No agreement of 50% OR 03 No agreement of 40% of the estimated value with guidelines of CBC.***

7. ***It is essential for tenderer to have Authorization letter of various OEM i.e. Hitachi/ Siemens/ GE & TD***

8. ***The firm who have registered in MSME but not credited EMD & tender cost in official account by NEFT/RTGS , shall not be entertained in work tender because MSME registration shall not be accepted in work tender***

9. The firm who jointly (Joint Venture) fulfill the condition will not be considered.

10. If any departmental (UPPCL/UPPTCL) proceeding is in process against the firm then Part-2 will not be opened.

11. The E-tender document once submitted shall not be returned.

12. **For quoting the Rates, 'Considerably Below the Estimated Value of the Tender', additional Security shall be deposited at the time of execution of agreement as per GO No.622/23-12-2012-2 Audit/08**

T.C.-2 dated 08.06.2012 & as per decision of the Board of Directors of UPPTCL vide No. 353/CS/T/Transco/SBd /(53/2017 dated 11.07.2017 which shall be released after expiry of satisfactory performance guarantee period.

13. The quoted rate should be firm for at least 1 Year, No price escalation shall be allowed.
14. E-Tender without E-tender specification shall not be accepted.
15. Any over writing/cutting in the E-tender should be duly signed and stamped, otherwise tender is liable to be rejected.
16. Tender shall not be accepted/received by the Post/Courier and by hand.
17. The undersigned reserve the right to cancel any E-tender or all the received E-tenders without assigning any reason thereof.
18. After approval of competent committee, Successful bidder shall be intimated by email/speed post to complete process of agreement by submission of 100/ - value non-judicial stamp paper alongwith additional security money (if applicable) calculated on the basis of PQR Clause No.7, within 30 days (except Govt. declared natural calamity) from the date of issue of letter by Electricity Transmission Circle Agra Office, failing which Successful bidder shall be debarred (प्रतिबंधित) for participating in any tender of Electricity Transmission Circle Agra for next one year and earnest money shall be forfeited.
19. Bidder will be fully responsible if any personal at appointed firm dies in fatal accident during work and instant compensation amount (5 Lac) is sanctioned to the relative of concerned person by UPPTCL. The above said compensation amount has to be deposited by the firm in cencern division within 120 days.
20. Contractor will be fully responsible for any minor or major miss-happening sustained to him/his personnel during execution of work. All the compensation arising there of shall be responsibility of the contractor only. UPPTCL will not be responsible in any way.
21. GST (CGST/SGST/UTGST/IGST) as legally applicable shall be payable extra, in accordance with rules & regulation of GST Law, against legal documentary evidence Bills/invoices

II. <u>Financial Requirement of this tender :-</u>

(i) The Minimum Average Annual Turnover* (MAAT) i.e. Average of the Best Three Financial Years Turnover out of the Last Five/Four financial years preceding to the year of NIT is published. In case the Bidder is in existence for less than five financial years the minimum average annual turnover shall be average of the turnover of the completed no of financial years. The bidder who is in existence for less than one complete financial years, shall not be qualified. The MAAT shall not be less than the Amount [Estimated Cost/Schedule Completion Period in year]. The project related turnover of the bidding company on standalone basis only (excluding its Associate companies /Holding Company) shall be considered. The Bidder shall furnish documentary evidence (Audited Annual Account & CA Certificate. CA Certificate without UDIN No. will not be considered in support of the qualifying requirement. In This Tender, **The Requirement of MAAT is Rs. 25.64 . Lacs .**

(ii) The Bidder shall have liquid assets (Cash at Bank & Fixed Deposit) and Un-Utilized credit facility (both Fund & Non Fund based) available from bank(s) duly certified by the Bank(s)/Charted Accountant at the end of Month preceding to the previous Month of Tender opening, shall not be less than 15% (Fifteen Percent) of estimated cost of the package(s)/works. In This Tender, **The Requirement of liquid asset is Rs. 3.84 Lacs**

(iii) Net worth of bidder as per the audited financial results shall be positive on the last day of the preceding financial year. Net Worth means the sum total of the paid-up share capital and free reserves (excluding reserves created out of the revaluation of assets, write back of depreciation provisions and amalgamation & Capital Reserve) net of P&LA/C (Dr. balance) and miscellaneous expenses to the extent not adjusted or written off. The certificate shall be submitted with their bid, which shall be issued by the Charted Accountant. CA Certificate without UDIN No. will not be considered in support of the qualifying requirement.

OTHER TERMS & CONDITIONS

1. (a) The Work shall be done at Sub-Stations / Lines as mentioned in NIT Page.

2. (b) Supplied material shall be type tested and shall dispatch only after inspection of the material or waived off as the case may be.

3. **TRANSPORTATION**:-To & fro transportation of the material arranged by or handed over to the Firm, for execution of work inside the Substation shall be the responsibility of Firm and shall be done by them at their own cost.

4. **RATES:** - Rates shall be Exclusive of GST and shall remain firm up to the completion of work contract period.

5. **PENALTY**:- The penalty @ ½% of the order value of work per weak subject to maximum of 10% of the order value of work shall be deducted from the bill of the contractor if the work is not completed within due period of completion after intimation by Executive Engineer concerned. Any delay on the part of UPPTCL shall be duly accounted for while calculating the completion period.

6. **T & P AND MANPOWER** -All the required T&P including shall be arranged by the contractor on his cost.

7. **SPARES & CONSUMABLES**: All the Spares shall be arranged by Contractor at his own cost.

8. **QUANTITY VARIATION**: - Work shall be got executed on one time basis.

I. If the Quality of Work of the firm is poor and the firm fails to execute the awarded work timely, the quantity of awarded work may be reduced to any extent.

II. Within the Agreement value, quantity of individual work may vary to any extent on positive as well as negative side with the condition that total value of agreement shall not exceed.

III. Subject to the condition of satisfactory execution of awarded work, the total value of Agreement may be extended by ±10%.

9. **GUARANTEE PERIOD** : 6 Months after completion of the work.

10. **PERFORMANCE GUARANTEE**: - Contractor shall submit Performance Guarantee worth 10% of the order value in form of FDR/CDR/TDR/STDR/BG duly pledged in favour of Executive Engineer, Electricity Transmission Division, concerned. If contractor fails to submit the so desired Performance Guarantee, the same shall be deducted from the Bill of the Contractor. Performance Guarantee pledged shall be released after one month after completion of Guarantee Period. The earnest money deposited shall be adjusted against Security and shall be released after successful completion of work provided Performance Guarantee has been deposited by Contractor.

11. **COMPLETION PERIOD**: - Completion Period of Work shall be 3 Months from the date of LOI / Agreement whichever is earlier. Any delay on the part of UPPTCL, shall be duly accounted for while calculation of completion period and period of Agreement shall be extended accordingly after recommendations of Engineer In-charge of Work i.e. Executive Engineer concerned.

12. **WORK ON DEBITABLE BASIS**: - After giving notice if firm fails to execute the instructed work or do not start the work within stipulated time period as decided by Engineer in charge of Work, in the interest of UPPTCL the same may be got executed through some external agency on limited enquiry basis and excess expenditure incurred (i.e. New Order Rate – Rate of Agreement With Firm) along with 15% Supervision Charges shall be deducted from the pending bills of the firm.

13. **PAYMENT**: - 100 % Payment shall be made after Successful Completion of Work subject to submission of Performance Guarantee as mentioned in Performance Guarantee Clause of Terms & Conditions and subject to availability of Funds with Engineer In Charge of Work from UPPTCL HQ...

14 **TAXES**:-Income Tax/Other Taxes/ GST under RCM shall be deducted as per prevailing rules and regulations.

15 **GST**: 1. GST, if applicable, shall be paid extra subject to submission of documentary proof of registration with Central Excise for GST.

2. GST @ 18% of the amount of Penalty / Forfeiting Amount of Performance Guarantee/Security , If any, shall be deducted from the Bills/Pending Bills of Contractor.

16. **SCRAP**: - Scrap shall be the property of UPPTCL.

17. **ENGINEER IN-CHARGE OF WORK**:-Executive Engineer concerned shall be Engineer In Charge of work.

18. **ENGINEER OF CONTRACT**:-SE, ETC, Agra shall be Engineer In Contract.

19 **FINALIZATION OF TENDER**:- The tender shall be finalized on the basis of total rates quoted for all the items of the tender. The bidder having the lowest total rates shall be considered as the lowest bidder. However if rates quoted by the firms found higher in comparison of previous orders/prevailing rates, the lowest bidder may be asked for negotiation to execute for the work at the rock bottom rates in the tender.

20. **INSURANCE OF MAN POWER**: Before start of Work, the Firm shall submit the Insurance Cover for life and disability, partial or complete, of their Manpower. Each of the Manpower shall be insured for amount not less than Rs. 5.00 Lacs. Before start of work, The Firm shall also submit Notary verified Undertaking that in case of accident to their man power while executing awarded work of UPPTCL if UPPTCL pays the compensation to the aggrieved family, the Firm shall deposit the entire amount of compensation, made by UPPTCL to aggrieved family, with Engineer In-charge of work within a month period and they shall always be legally liable to deposit the said compensation or else recovery may be made from their bills pending with UPPTCL or through forfeiting their movable or immovable property registered in the name of Firm, its proprietor , partners of firm etc.

21 **MAJOR OR MINOR ACCIDENTS**: Contractor will be fully responsible for any minor or major miss happening sustained to him/his personnel during execution of work. All the compensation arising thereof shall be the responsibility of the contractor only. UPPTCL will not be responsible in any way.

22. **LABOUR LAWS**: Contractor shall follow all the relevant labour laws enforced by Govt. of India or U.P. from time to time during the period of contract.

23. **EPF/ESI** : In case clause of EPF/ESI is not applicable and the notary verified affidavit is submitted by the firm in respect of application for EPF/ESI from respective department, the same shall have to be submitted by the firm within three months time period from the placement of order. If the firm fails to submit aforesaid certificate with in stipulated time period, the payment to the firm shall be held till such a period when the firm submit the desired document.

24. **BLACK LISTING**: In case the firm noticed Black listed/debarred in UPPCL after finalization of the tender, the bidder shall be liable for legal action and order, if placed, shall be cancelled.

25. **POOR PERFORMANCE**: In case the past work/supply of material by the firm noticed after finalization of the tender that the performance of their firm has never been found unsatisfactory in UPPTCL, the bidder shall be liable for legal action and order, if placed, shall be cancelled.

26 **LEGAL PROCIDEENGS**: If any legal proceedings/enquiry or any other illegal activity is brought to be noticed against the firm, the bid of respective firm shall be rejected and that shall be liable for legal action and order, if placed, shall be cancelled.

27 **SAFETY MEASURES**: Contractor shall ensure to provide all the safety measures to his man power while working inside the substation and shall also ensure that they follow all the safety rules and regulations. In case any accident occurs due to negligence of the man power of the contractor, the firm shall be responsible for any loss of man and material to the UPPTCL or Man Power, Contractor himself and shall be accordingly assessed and the assessment amount shall be recovered from the contractors pending bills in UPPTCL.

28. **JURISDICTION OF COURT**: All disputes arising out of and related to the subjected matter of above work shall be subjected to jurisdiction local court at Agra and Judicature of Honorable High court at Allahabad.

29. **ARBITRATOR**: The arbitrator will be SE, ETC, Agra. In case any dispute arising between Executive Engineer Concerned and the contractor, SE, ETC, Agra shall be arbitrator and his decision shall be binding on both i.e. Executive Engineer concerned and the firm.

30 Other terms and condition of WPP of UPPTCL shall also be applicable.

31 ***Tender Bids supported with wrong / spurious facts / fake documents shall be rejected and bidder may be debarred (प्रतिबंधित) for participating in any tender of Electricity Transmission Circle Agra for next one year and earnest money shall be forfeited.***

32 ***Non- readable / invisible / illegible bid documents shall be rejected.***

33 **Tender must submit affidavit on as per details / proforma given as under :-**

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1. यह कि मैं शपथ पूर्वक कथन करता हूँ कि मेरा नाम..... पता..... है।
2. यह कि मैं शपथ पूर्वक कथन करता हूँ कि मेसर्स .....का प्रोपराईटर हूँ।
3. यह कि मैं शपथ पूर्वक कथन करता हूँ कि मेरी फर्म के द्वारा विभाग के किसी भी कार्य में दोष नहीं पाया गया है और दोष रहित आपूर्ति एवं कार्य समय पर पूर्ण किये गये है।
4. यह कि मैं शपथ पूर्वक कथन करता हूँ कि मेरी फर्म जी.एस.टी. में रजिस्टर्ड है।
5. यह कि मैं शपथ पूर्वककथन करता हूँ कि मेरी फर्म उ.प्र. पावर ट्रान्समिशन कारपोरेशन लिमिटेड एवं अन्य किसी सरकारी विभाग में ब्लैकलिस्टिड़ नहीं है।
6. यह कि मैं शपथ पूर्वक कथन करता हूँ कि सन्दर्भित ई–निविदा संख्या .....में वर्णित (P.Q.R.) सभी नियम एवं शर्ते स्वीकार है।
7. यह कि मैं शपथ पूर्वक कथन करता हूँ कि शपथ पत्र में उपरोक्त बिन्दु संख्या 01 से 06 तक का कथन मेरे निजी ज्ञान में सब सच है कुछ भी छिपाया नहीं गया है सत्य कथन से ईश्वर मेरी मदद करें।

Signature of tendered with seal

Date

CORRIGENDUM OF PRE QUALIFYING CONDITION OF TENDER

E-T-23/ ETC (A)/ 2024-25 :- **Work of SCADA integration against increasing capacity at 220 KV S/S Sirsaganj under ETD Firozabad**

1. It is essential for tenderer to have Work Experience of SCADA integration & SCADA Maintenance at 220 KV Sub-Station and above Voltage level.

2 It is essential for tenderer to have Authorization letter of various OEM i.e. Hitachi / Siemens / GE T&D .

Other terms & condition of tender remaining unchanged.

(Arvind Kumar)
Superintending Engineer

AGREEMENT

(To be furnished non judicial stamp paper of worth Rs. 7=50)

Tender invited by: **Superintending Engineer**
U.P. Power Transmission Corporation Ltd.
Electy. Transmission Circle Agra – 282007
Mob. No. 9458096415
Email : setagra@upptcl.org

Tender For : **Work of SCADA integration against increasing capacity at 220 KV S/S Sirsaganj under ETD Firozabad**

Name of Firm : **M/s** ----------

Tender Specification No. **E-T-23/ ETC (A)/ 2024-25**

In Consideration of the U.P.Power Transmission Corporation Ltd. Having treated the tender to be an eligible person whose tender may be consider the tenderer agrees to the conditions that the proposal in response to the above invitation shall not be withdrawn, nor any major modification shall be made to the other affecting the price (including price variation) quality, quantity or delivery schedule after opening of bids suring validity period (120 days from the date of opening of the tender) and also to the condition than if the tender does withdraw his proposal or make major modification to his bid with in the validity period , the earnest money furnished by him shall be forfeited to the U.P.Power Transmission Corporation Ltd. at the discretion of the later.

Signed this …….day of
……..

Signature
State Title (Whether Proprietor)

Partner
Witness ……..
Address ……..
Signature ……

Name of the Firm
Address of the Firm
Seal of the Firm

PART-1 SCHEDULE - A

TENDER FORM (WORK/SUPPLY)

To,

Superintending Engineer
U.P. Power Transmission Corporation Ltd.
Electy. Transmission Circle Agra – 282007
Email : setagra@upptcl.org

Sir,

With reference to your invitation to tender for the above, I/We hereby offer to U.P. Power Transmission Corporation Ltd. of the items in the schedule of prices and delivery annexed of such portion thereof as you determine in strict accordance with the annexed conditions of CONTRACT FORM - 'A' & 'B' - Specification and schedule of Rates to the satisfaction of purchaser or in default thereof to forfeit and pay to the U.P. Power Transmission Corporation Ltd. the sum of money mentioned in the said conditions.

The rates quoted are inclusive prorata and in full satisfaction of all claims.

I/We agree to abide by this tender for the period of SIX MONTHS from the date affixed for receiving the same.

A sum of Rs…….(Rupees……..) in the form of ……is hereby forwarded duly endorsed in favour of the.....
Electricity …… …….., Agra (PAYABLE at Agra) as Earnest Money.

I/We hereby undertake and agree to executed contract in accordance with the conditions of the contract.

Date:……Day of 20

WITNESS :……. **Yours Faithfully,**

ADDRESS:……...

OCCUPATION:……....

(SIGNATURE OF TENDERER
IN FULL WITH NAME & STAMP)

PART-1 SCHEDULE – B

Working experience and Financial capacity for Execution of Works / Supply

1. Details of Working / Supplies experience of M/s ……...

……

Sl. No.	*Name of organization with which agreement /order executed*	*Agreement / Purchase Order No.& date*	*Details of Works / Supplies*	*Cost of Agreement / Supply Order*
1	*2*	*3*	*4*	*5*

Note:- 1. Testimonials in support of the above may be submitted from officer not below the rank of Executive Engineer

2. Attach additional papers, if details are not covered in the table.

2. Position of last assessed your Income Tax Clearance.

……

……

3. Financial capacity of contractor (Give banker's name)

……

……

Signature of tendered with seal

Date

Details of Tender Cost Transaction

(To Be submitted with part Ist of the tender)

Sl. No.	Particular	Description (to be filled by Tenderer)
1	Tender Number	
2	Tenderer Name	
3	Date of Transaction	
4	UTR Number & Date	
5	Other Transaction Reference	
6	Amount in Figure	
7	Amount in Words	
8	Details of Account from which transaction Done	
9	Account Name	
10	Account Number	
11	Issuing Bank	
12	Issuing Branch	
13	Issuing Branch IFSC Code	
14	Mobile No. for Transaction Enquiry	
15	Email. ID for Transaction Enquiry	

Note :- Documentary Evidence / Slip of RTGS/NEFT of Tender Cost (Having Details of UTR No. Date, Bank Account No., Amount , Firm Name & scanned copy of pay in slip countered sign by the tenderer etc)

Signature of Tenderer with Seal

Details of Earnest Money Transaction

(To Be submitted with part Ist of the tender)

Sl. No.	Particular	Description (to be filled by Tenderer)
1	Tender Number	
2	Tenderer Name	
3	Date of Transaction	
4	UTR Number & Date	
5	Other Transaction Reference	
6	Amount in Figure	
7	Amount in Words	
8	Details of Account from which transaction Done	
9	Account Name	
10	Account Number	
11	Issuing Bank	
12	Issuing Branch	
13	Issuing Branch IFSC Code	
14	Mobile No. for Transaction Enquiry	
15	Email. ID for Transaction Enquiry	

Note :- Documentary Evidence / Slip of RTGS/NEFT of Earnest Money (Having Details of UTR No. Date, Bank Account No., Amount , Firm Name & scanned copy of pay in slip countered sign by the tenderer etc)

Signature of Tenderer with Seal

PART-1 SCHEDULE – C

INFORMATION OF THE CONTRACTOR

This part of tender specification should be enclosed with Part - 1 of the tender offer. The information given hereunder should be filled carefully and any information filled here is found wrong subsequently - the tender will be rejected.		
(A) 1	**E-Tender Specification Number & Work**	**E-T-23/ ETC (A)/ 2024-25**
2.	**Name of Work**	Work of SCADA integration against increasing capacity at 220 KV S/S Sirsaganj under ETD Firozabad
3.	Name of Firm with full address & Local & Permanent Address	
4.	Name of Proprietor of the Firm & Address, Local & Permanent Address.	
5.	Firm Telephone No. email address,	
6	PAN No.	
7	GST Registration No.	
8.	Labor Department Registration	
9.	ESI/EPF Department Registration	
10.	Account Name	
11.	Account Number	
12.	Issuing Bank	
13.	Issuing Branch	
14.	Issuing Branch IFSC Code	
15	Amount & Details of Tender Cost Deposited with Bank through RTGS / NEFT in favour of **Executive Engineer (A) ETC Agra.** Please Mention UTR No. & Enclose Copy of Pay-in-Slip & UTR No. against Deposit of Tender Cost	
16	Amount & Details of Earnest Money Deposited with Bank through RTGS / NEFT in favour of **Executive Engineer (A) ETC Agra.** Please Mention UTR No. & Enclose Copy of Pay-in-Slip & UTR No. against Deposit of Earnest Money.	
B		**Please tick (√) Yes or No.**
16.	Have you performed similar Job/ Supply of such items in the past.	
17.	Do you agree to our conditions given in the e-tender	Yes / No.
18	Is the quoted rate for each item 'FIRM' is all respect ?	Yes / No.
19	Are your rates valid for 120 days from the date of e-tender opening	Yes / No.
20	Give minimum Delivery / Completion Period.	
21	If you are authorized representative Dealer of any other Concerned. Give name of such Firm.	Yes / No.
22	Does mentioned offer by you fully confirm to relevant ISS Specifications & the Technical Specifications of this Tender. Mention Technical deviation, if	Yes / No.
23	Do you agree for deduction of Income Tax and any other Lavies / Taxes as legally applicable on work as per the Agreement	Yes / No.
24	Indicates clearly if the quoted prices are Firm & Firm in all respect throughout the currency of the contract / Agreement.	Yes / No.
25	Term of Payment	Running / Payment after completion of Work
Certified that the information stated above are correct and at any time - any information found wrong - we agree to the conditions of rejection of our tender		

SIGNATURE OF THE CONTRACTOR WITH NAME & STAMP.

FORM-A

General condition of contractor for the supply of plant and the Execution of Works in the U.P. Power Corporation Limited.

1. **Definition of terms:** In construing these General Conditions and the annexed specification ,the following words shall have the meaning herein assigned to them unless there is anything in the subject or context inconsistent with such construction:

The "Purchase" shall mean the U.P.Power Corporation Ltd and shall include its successors and assigns.

The " Contractor" shall mean the Tender whose tender shall be accepted by the purchaser and shall include such Tender's heirs, legal representatives, successors and assigns.

The " Sub-Contractor" shall mean the person named in the contract for any part of the work for any person to whom any part of the contract has been sublet with the consent in writing of the Engineer and the heirs, legal representatives, successors and assigns of such person .

The " Engineer" shall mean the officer placing the order for the work with the Contractor and such other officer as may be duly authorized and appointed in writing by the purchaser to act as Engineer for the purposes of the Contract and in case where no such officer has been so appointed, the purchaser or his duly authorised representative.

" Plant", " Equipment", "Material", " Works", shall mean the respectively the plant and materials to be provided and the works to be done by the Contractor under the contract.

The " Contract" shall mean and include the General Conditions, Specification, Schedules, Drawings, From of Tender, Covering Letter, Schedule of prices or the final General Conditions, Specifications and Drawings and the Agreement to be entered in to under clause 3 of these General Conditions.

The " Specification" shall mean the Specifications annexed of these General Conditions and the Schedule thereto (if any)

The " Site" shall mean the site of the proposed work as detailed in the specification or any other place in Uttar Pradesh where work is to be executed under the contract.

"Month" shall mean calender month.

" Writing shall include any manuscript , typewritten or Printed statement , under of over signature or seal, as the case may be.

Words importing persons shall include Firms, Companies, Corporations, and other bodies whether incorporated or not.

Words importing the singular only shall also include the plural and vice versa where the context requires.

2. **Contractor to inform himself fully:** The Contractor shall be deemed to have carefully examined the General Condition, Specifications, Schedules and Drawings. If he shall have any doubt as to the meaning of any portion of these General Conditions, or of the Specifications he shall before singing the Contract, set forth the particulars thereof and submit them to the Engineer in writing, in order that such doubt be removed.

3. **Contractor**: A formal agreement shall , if required by the Purchaser, be entered into between the Purchaser and the Contractor for the proper fulfillment of the Contract. Further , if required by the purchaser, the Contractor shall deposit with the Purchaser as security for the due and faithful performance of the contract such sum not being less than one percent of the total value of the contract as may be fixed by the Purchase either in case or in other from approved by the Purchaser.

The Charges in respect of vetting and execution of the contract document shall borne by the contractor. The contractor shall be furnished with an executed stamped counterpart of the agreement. The import license fee will, in each case have to be laid by the contractor, import license have to be taken in Board's name.

After the tender has been accepted by the Purchaser all orders or instruction to the contractor shall except as herein otherwise provided be, given by the Engineer on behalf of the Purchaser.

4. **Contract Drawings**: The contract shall submit, in duplicate, to the Engineer for his approval, drawings of the General Arrangement of the plants to be carried out and such detailed drawings , other than shop drawings, as may be reasonable necessary.

Within fourteen days of the receipt of such drawings the Engineer shall signify his approval or otherwise of the same , and in the event of disapproving the drawings, the contractor shall submit further drawing for approval.

Within a reasonable period of the notification by the Engineer to the contractor of his approval of the such drawings, three sets, in ink on tracing cloth or ferro gallic prints mounted on cloth, of the drawings as approved shall be supplied to him by the contractor and be signed by him and by the contractor respectively and be thereafter deemed to be the " Contract Drawings".

These drawings when so signed shall become the property of the Purchaser and be deposited with the Engineer, and shall not be departed from in any way whatsoever except by the written permission of the Engineer as herein after provided. During the execution of the works. One set of drawings shall be available for reference on the site.

In the event of the contractor desiring to possess a signed set of drawings, he shall supply four sets instead of the three sets, and in this case the Engineers shall sign the fourth set and return the same to the contractor.

The Contractor, if required by the Engineer, shall supply in addition copies of any drawings other than shop drawing which may reasonably be required for the purpose of the contract and any make a reasonable charger for such copies.

The Engineer or his duly authorized representative, whose name shall have previously been communicated in writing to the Contractor, shall have the right, at all reasonable times, to respect, at the factory of the Contractor, drawings of any position of the work.

5. **Mistake in Drawings**: The Contractor shall be responsible for and shall pay for any alternations of the work due to any discrepancies, errors for omissions in the drawings or other particulars have been approved by the Engineer or not, provided that if such discrepancies, errors or omissions are due to inaccurate information of particulars furnished to the

Contractor by the Engineers, any alterations in the plant necessitated by reason of such inaccurate information or particulars shall be paid for by the purchaser.

If any dimensions figured upon a drawing or a plan differ from those obtained by scaling the drawing or plane, the dimensions as figured upon the drawing or plan shall be taken as correct.

6. **Subletting of Contract**: The Contractor shall not, without the consent in writing of the Engineer of Purchaser, which shall not be unreasonably, withheld, assign of sublet his contract, or any substantial part thereof , other than for raw materials, for minor details, or for any part of the plant, of which the makers are named in the contract provided that any such consent shall not relieve the contractor from any obligation, duly or responsibility under the Contract.

7. **Patents Rights**: In the event of any claim or demand being made or action being brought against the purchaser for infringement or alleged infringement of Letters Patents, in respect of any machine, plant of thing used or supplied by the Contractor under this Contract or in respect of any method of using or working by the Purchaser of such machine, plant or thing, the contractor will indemnify the purchaser against such claim or demand and all costs and expenses arising from or incurred by reasons of such claim or demand PROVIDED THAT the purchaser shall notify the contractor immediately any claim is made and that of Contractor shall be at liberty, if he so desires , with the assistance of the Purchaser, if required, but the Contractor's own expense, to conduct all negotiations for the settlement of the same or any litigation that may arise there form and PROVIDED THAT no such machine, plant or thing shall be used by the purchaser for any purpose or in any manner other than that for which they have been supplied by the Contractor and specified under this contract.

8. **Quality of Materials**: The plant shall be manufactured and constructed in the best and most substantial and most workmanlike manner and with materials of the best or of approved qualities for their respective uses .

9. **Packing :** The Contractor shall be responsible for security, protecting and packing the plant so as to avoid damaged under normal conditions of transport.

10. **Delivery:** The cost of delivering the whole of the material F.O.R. at the railway stations specified or on the site as the specification may define and the cost of packing and unless otherwise agreed, important duties and custom duties shall be borne by the contractor.

11. **Fencing and lighting for works other than Transmission Line**: Except as herein after provided the Purchaser shall, unless otherwise specified, be responsible for the proper fencing, grading, lighting, and watching of all works other than Transmission lines comprised in the Contract and for the proper provision of temporary roadways, footways guards and fences as far as the same amy be rendered necessary be reason of the work for the accommodation and protection of foot-passengers or other traffic and of the owners and occupied of adjacent property and of the public.

For Transmission Lines: The contractor shall at times provide sufficient fencing notice-boards, light, and watchmen to protect and warm the public and guard the work of transmission and in case the Contractor fails to make such provision or the provision made by him is considered by the Purchaser to be inadequate, the Purchaser may make such provision or further provisions as he may consider necessary and charge the cost thereof to the contractor.

For All Works:- If during the period of erection of a plant the Contractor of his workmen or servants shall injure or destroy any part of the building or other structure contiguous to the work in progress of if any damaged shall be caused from any cause what so ever to other works whether in progress or completed forming part of the work for which the plant is being installed or if any imperfections become apparent in these work the causes of which imperfections are attributable to the contractor or his workmen or servants, the Contractor shall make good such damages and imperfections and if he fails to do so with in a reasonable time, the Purchaser may cause the same to be made good and any deduct the cost thereof from any sum that may then or at any time thereafter become due to the contractor of from his security deposit or the proceeds of sale thereof or of a sufficient portion thereof or may recover it otherwise.

12. **Power to vary of Omit work:** No, alterations, amendments, omissions, additions, suspensions, or variations of the work (therein after referred to as " Variations") under the contract as shown by the contract drawings or the Specification shall be made by the Contractor except as directed in writing by the Engineer, but the Engineer shall have full power , subject to the provision herein after contained, from time to time during the execution of the Contract by notice in writing to instruct the Contractor to make such variations without prejudice to the Contract, and the Contractor shall carry out such instructions, and be bound by the same conditions, as far as applicable, as though the said variations occurred in the specification. If any suggested would, in the opinion of the Contractor, if carried out, prevent him from fulfilling any of his obligations or guarantees under the Contract, he shall notify the Engineer thereof in writing, the Engineer shall decide forthwith whether or not the same shall be carried out, and if the Engineer confirms his instructions, the Contractor's obligations and guarantees shall be modified to such an extent as may be justified . The difference of cost, if any, occasioned prices as the case may require. The amount of such difference, if any shall be ascertained and determined in accordance with the rates specified in the schedules of Prices, So far as the same may be applicable and where the rates are not contained in the said Schedules, or are not applicable they shall be settled by the Engineer and Contractor, jointly as far as possible , before such variations are carried out: Provided that the Purchaser shall not become liable for the payment of any charge in respect of any such variation, unless the instructions for the performance of the same shall have been given in writing by the engineer.

If the cost of executing the work as aforesaid shall exceed the balance due to the contractor, and the contractor fails to make good the deficiency, the Purchaser may recover it from the contractor in any lawful manner or the purchaser may sell the said materials, tools tackle or other things belonging to the contractor and the proceed of such sale shall be applied towards the payments of such deficiency and the cost of any incidental to such sale and any balance remaining after crediting the same shall be paid to the contractor on the certificate of the Engineer, provided that when all expenses , costs and charges incurred in the completion of the work are paid by the contractor, all such materials, tackle or other things remaining unsold be removed by the contractor.

In the event of the Engineer requiring any variations , such reasonable and proper notice shall be given to the contractor as will enable him to make his arrangements accordingly, and in case where goods or materials have already been prepared, or any design, drawings, or patterns have made of work done that require to be altered, the Engineer shall allow such compensation in respect thereof as he shall consider reasonable.

Providing that no such variations shall except with the consent in writing of the Contractor, be such as will involve as increase or decrease of the total price payable under the Contract by more than 10% thereof .

In every case in which the contract shall receive instruction from the Engineer for carrying out any work which either then or later will in the opinion of the contractor, involve a claim for additional payment, Contractor shall, as soon as reasonably possible after the receipt of such instructions inform the Engineer of such claim for additional payment.

13. **Negligence**: If the Contractor shall neglect to execute the work with due diligence and expedition, or shall refuse or neglect to comply with any reasonable orders given to him in writing by the Engineer in connection with the manufacture or supply or shall contravene any provision of the contract, the purchaser may give seven day's notice in writing to the Contractor to make good the failure , neglect or contravention complained of, and if the Contractor shall fail to comply with the notice : within a reasonable time from the date of service thereof in the case of failure, neglect of contravention capable of being made good with in that time , then and in such case , if the Purchaser shall think be at liberty to employ other workmen and forth with perform such work as the contractor any have neglected to do or if the Purchaser shall think fit , it shall be lawful for him to take work wholly, or in part, out of the contractor's hand and give it to another persons on contractor at a reasonable price or provide any other materials tools tackle or labour for the purpose of completing the work of any part thereof, and that event the purchaser shall without being responsible to the Contractor for fair wear and tear as the same have the free use of all the materials, tools, tackles or other things which may be on the site , for use of any right of the contractor over the same and the Purchaser shall be entitled to retain and apply any balance which may be otherwise due on the contract by him to the contractor or such part thereof as may be necessary, to the payment of the cost of manufacture or supply of such plant as aforesaid.

14. **Deaths, Bankruptcy etc:-** If the contractor shall die or commit any act of Bankruptcy, or being a corporation commence to be wound to except for reconstruction purposes or carry on its business under a Receiver, the executors successors, or other representative in law of the estate of the contractor or any such receiver, liquidator or any person in whom the contract may become vested shall forthwith give notice thereof in writing to the purchaser and shall for one month, during which he shall take all option of carried out the contract subject to his or their providing such guarantee as may be required by the Purchaser, but not exceeding the value of the plant of the time being remaining unexecuted . In the event of stoppage of the work period of the options under this clause shall be fourteen days only, providing that, should the above option not be exercised , the contact may be determined by the purchaser by notice in writing to the contractor, and the purchaser may exercised the same power which he could exercise and will have the same rights which he would have under the last preceding clause if the work had been taken out of the contractor's hands under that clause.

15. **Inspection and testing:-** The Engineer, and his duly authorized representative, shall have at all reasonable times, access to the Contractor's premises, and shall have the power at all reasonable times to inspect and examine the materials and workmanship of the plant during its manufacture there, and if part of the plant is being manufactured on other premises , the contractor shall obtain for the Engineer and for his duly authorised representative permission to inspect it as if the plant manufactured on the Contractor's own premises.

The Engineer shall, on giving seven days, notice in writing to the Contractor setting out any grounds of objections which he may have in respect of the work, be at liberty to reject or any Plant or Workmanship connected with such work, which, in his opinion, are not in accordance with the Contact, or are, in his opinion, defective for any reason whatsoever, provided that, if such notice be not sent to the contractor with in reasonable time after the grounds upon such notice is based have come to the knowledge of he Engineer, he shall not be entitled to reject the said plant or workmanship on such grounds. Unless specifically provided otherwise all tests shall be made at Contractor's work before shipment.

The Contractor shall, if required, give the Engineer notice of any material being ready for testing, and the Engineer, or his said representative, if so desired, shall, on giving twenty-four hours, previous notice in writing to the Contractor, attend at the Contractor's premises with in seven days of the date on which the material is notified as being ready, failing which visit the Contractor may proceed with the tests which shall deemed to have been made in Engineer's presence, and he shall forthwith forward to the Engineer duly certified copies of the tests in duplicate.

Tests at Contractor's premises:- In all cases where the contract provides for tests, whether at the premises of the Contractor or of any sub-contractor, the Contractor, except whether otherwise specified, shall provide, free of charge, such labour materials, electricity, fuel, water, stores, apparatus, and instruments as may reasonably he demanded to carry out efficiently such tests of the plant in accordance with the Contract and shall give facilities to his authorized representative to accomplish such testing.

If special tests, other than those specified in the Contract are required they shall be paid for by the Purchaser as " Variations" under clause 12.

When the tests have been satisfactorily completed at the Contractor's works, the Engineer shall issue a certificate to that effect.

Tests on Site:- In all cases where the Contract provides for tests on the site the purchaser, except otherwise specified, shall provide, free of charge, such labour, materials, electricity, fuel, water, stores, apparatus and instruments as may be requisite from time to time and as may reasonably be demanded, efficiently to carry out such test of the plant or workmanship in accordance with the Contract.

In the case of the Contractor requiring electricity for tests on site such electricity shall be supplied to the contractor in the most convenient from available.

16. **Delivery of Plant:-** The plant of material shall not be forwarded until shipping/despatch instructions shall have been given to the Contractor.

Notification of delivery or despatch in regard to each and every consignment shall be made to the purchaser immediately after despatch or delivery. The supplier shall further supply to the Consignee a priced invoice and packing account of all stores delivered of dispatched by him. All packages, containers, boundless and loose materials forming part of each and every consignment shall be described fully in the contents of packages and quantity of materials shall be given to enable the Consignee to check the stores on arrival at destination.

17. **Access to site and work on site:-** Suitable access to, and possession of the site shall be afforded to the contractor by the Purchaser in reasonable time, and the purchaser shall have any foundations to be provided by him ready when required by the contractor. Where a crane is available, its safe lifting capacity shall be stated in the specification, and it shall be available for free use of the Contractor until the plant is taken over.

Only applicable to complete erection Contracts:- The work, so far at it is carried out on the Purchaser's premises shall be carried out at such time as the Purchaser may approve, and so as not interfere unnecessary with the conduct of the Purchaser's business, but the purchaser shall give the Contractor all responsible facilities for carrying out of work.

No person other than the Contractor, Sub-contractors and workmen and the Contractor's duly authorised agents shall, except with the special permission in writing, of the Engineer or his representative, be allowed to do any work on the site in connection with the erection of the work but access to the work shall at time be accorded to the Engineer and his representative and other authorised officials or representatives of the purchaser.

The Contractor shall permit the execution of work by other Contractor or tradesman whose names shall have been previously communicated in writing to the Contractor by the Engineer, and afford them every facility for their execution of their several works simultaneously with his own.

The Purchaser shall provided all the unskilled labour and facilities necessary for the execution of work include in the Contract unless otherwise specified.

18. **Engineer's Supervision:-** All the works shall be carried out under the direction and to the reasonable satisfaction of the Engineer. If supervision of erection or complete erection is included in the Contract the Contractor shall be responsible for the correctness of the positions, levels, and dimensions of the works according to the drawing not withstanding that he may have been assisted by the Engineer setting out the same.

19. **Engineer's decision:-** In respect of all matters which are left to the decision of the Engineer, including the granting or withholding of certificates, the Engineer shall, if required so to do by the Contractor, give in writing a decision thereon, and his reasons for such decision. If the decision is not accepted by the contractor the matter will, at the request of the Contractor, be referred to arbitration under the provision for arbitration hereinafter contained, but subject to the right of reference to arbitration such decision shall be final and binding on the Contractor.

20. **Contractor's representative and workman:** If the supervision of erection or complete erection is also included in the contract, the Contractor shall have employ at least one competent representative, whose name or names shall have previously been communicated in writing to the Engineer by the Contractor to superintends the erection of the plant and the carrying out of the works. The said representative, or if more than one shall be employed, than one of such representative, shall be present on the site during the working hours, and any written orders or instructions which the Engineer of his duly authorised representative whose name shall have been previously communicated in writing to the Contractor may give to the said representative of the Contractor shall be deemed to have been given to the Contractor.

The Engineer shall be at liberty to object to any representative or person employed by the Contractor in the execution of or otherwise about the works who shall in his opinion misconduct himself or be incompetent or negligent and the Contractor shall remove the person so objected to upon receipt from the Engineer of notice in writing requiring him so to do and shall provide in his place a competent representative at the Contractor's expense.

The purchaser shall provide suitable living accommodation on the site for the use of Contractor's representative unless the Contractor exempts him from his liability.

21. **Liability for Accidents & Damage:-** The Contractor shall be responsible for loss, damage or depreciation of the plant until the same is taken over under clause 35 or is deemed under that clause to have been taken over Provided ALWAYS that Conductor shall not be responsible for any such loss, damages and depreciation occurring during such period that plant is operated by the Purchaser's staff prior to being taken over in accordance with clause 35.

Until the plant is taken over or is deemed to have been over aforesaid the Contractor shall also be libel for and shall indemnify the Purchaser in respect of all injury to person or damage to property resulting from the negligence of the Contractor or his workmen or sub-contractors or from defective design, or work, but not from any other cause:

Provided that the Contractor shall not be liable for any loss of profit or loss of Contract or any other claim made against the Purchaser not already provided for in the Contract, nor for any injury or damage caused by or arising from the acts of the Purchaser or of any other person or due to circumstances over which the Contractor has no control, nor shall his total liability for loss, damage or injury under this clause exceed the total value of the Contract.

The Contractor will indemnify and save harmless the Purchaser against all actions suits, claims, demands, costs or expenses arising in connation with injuries other than such as may be attributable to the Purchaser or his employee(s) suffered prior to the date when the plant shall have been taken over under clause 35 hereof by persons employed by the Contractor or his sub-contractor on the work, whether at Common Law or under the Workmen Compensation Act, 1923, or any other Statute in force at the date of Contract relating to the question of the liability of employers for injuries suffered by employees, and will, if called upon to do so, take out the necessary policy or policies of insurance to cover such indemnify.

Only applicable to complete Erection Contract.:- In the event of any claim being made, or action brought against the Purchaser involving the Contractor and arising our of the matters referred to and in respect of which the Contractor is liable under this clause, the Contractor shall be immediately notified thereof , and he shall, with the assistance, if he so requires of the purchaser, but at the sole expense of the Contractor conduct all negotiations for the settlement of same or any litigation that may arise there from. In such case, the Purchaser, shall, at the request and expense of the Contractor, afford all reasonable and available assistance for any such purpose.

22. **Insurance:-** The Contractor shall insure the plant and shall keep it insured against loss by theft, destruction or damage by fire, flood undue exposure to the weather, or though riot civil commotion, war or rebellion, for the full value of the plant from the time of delivery F.O.R. works until the plant is taken over under clause 35. This insurance shall also cover loss by theft on site in the case of Contractors where the Contractor is responsible for completion reaction but not in other cases.

23. **Replacement of defective plant or materials.**:- If during the progress of work, the Engineer shall decide and notify is writing to the contractor that the Contractor has executed any unsound or imperfect work, or has supplied any plant inferior in quality to that specified, the contractor on receiving details or such defects or deficiency, shall at his own expense, within such time as may be reasonably necessary for making it good, proceed to alter, reconstruct or remove such work, or supply fresh materials up to the standard of the specification and in case the Contractor shall fail so to do, the Purchaser may on giving notice in writing of his intention so to do proceed to remove the work complained of , and at the cost of the Contractor, perform all such work or supply all such materials provided that nothing in this clause shall be deemed to deprive the Purchaser of or affect any rights under the Contract which he may otherwise have in respect of such defects or deficiencies.

24. **Deduction from contract price:-** all coast, damages or expenses, which the Purchaser may have paid, for which under the Contractor, the Contractor is liable, may be deducted by the purchaser from any monies due or which may become due by him to the Contractor under this Contractor, or may be recovered by suit or otherwise from the Contractor.

Any sum of money due and payable to the Contractor (including security deposit returnable to him) under this contract may be appropriated by the Purchaser and set off against any claim of the Purchaser for the payment of a sum of money arising out of or under any other Contractor made by the Contractor, with the Purchaser.

25. **Terms of payment:-** 21.(1) Subject to any deduction which the Purchaser may be authorized to make under the Contract, or subject to any additions or deductions provided for under clause 11, the Contractor shall, on the certificate of the Engineer, be entitled to payment as follows-

(a) Eighty percent of the F.O.R. Contract value of the plant in rupees on receipt by the Purchaser of the Contractor's invoice giving the number and date of railway receipt covering the despatch of the plant from the Indian Post and of the advice note giving caser number and contents, together with certificate by the Contractor to the effort that the plant detailed in the said advise note has actually been dispatched under the said railway receipt and that the Contract value of the said plant so dispatched is not less than the amount entered in the invoice.

(b) Ten percent of the F.O.R. Contract value of the plant on satisfactory completion of tests and taking over of the plant.

(c) Ten percent of the F.O.R. Contract value of the plant at the end of twelve months from the date of taking over.

(d) For the erection of the plant in proportion of the progress of the work or receipt by the Purchaser of monthly invoices submitted by the Contractor supported by the certificates of the Engineer.

2. If at the time at which either of the installments due under sub clause (b) and (c) of clause (1) hereof becomes payable there are minor defects in the plant which are not of such importance as to affect the full commercial us3e of the plant then the Purchaser shall be entitled to retain only such part of the installment the due as represents the cost of making good such minor defects and any sum so retained shall, subject to the provisions of clause 35, become due upon such minor defect being made good.

3. If the Purchaser desires that plant or any portion should not be dispatched by the Contractor when it is due for despatch, the contractor shall store such plant or portion at his works and be 'responsible' for all risk. For such storage the Purchaser shall pay to the contractor at a rate to be mutually agreed upon between the parties, but not exceeding 5s (five shillings per ten per week payable quarterly, plus interest at one percent per annum above the current rate of the State Bank of India, on 80% of the contract value of the plant or portion thereof so stored, for the period from the date on which the said plant or portion becomes, due and is ready for shipment upto the date on which it is actually shipped.

25. (A) In the event of the Supplier/ Contractor/ Company not being able to supply the materials or to carry out the Works in accordance with the terms of this Contract, the Board/ Purchaser/ Owner shall have the right to recover any sums advanced in accordance with the clause 25 from the Supplier/ Contractor/ & from his/ its assets.

26. **Provisional sums:-** In any case where the contract price include a provisional sum to be provided by the contractor for meeting the expenses or extra work to be done or materials to be supplied by a sub-contractor, such sum shall be expended or used, either wholly or in part, or be not used at the discretion of the Engineer and entirely as he may decide and direct. If no part or only a part thereof be used, then the whole or the part not used, as the case may be, shall be deducted from the contract price. If the sum used is more than such provisional sum the Contractor shall pay the excess. In the case of materials supplied or work done by a sub-contractor, the total of the net sums paid to the sub-contractor on account of such materials or works and a sum equal to 10% of such net sums allowed as Contractor's profit shall be deemed to be the sum used. None of the works or articles to which scum sum of money refers shall be done or Purchased without the written order of the Engineer. The Contractor shall allow the sub-contractors every facility for the supply of materials or execution, of their several works simultaneously with his own, and shall, within fourteen days after the Engineer has requested him in writing so to do, pay the dues of such sub-Contractors on account of such materials or work: PROVIDED ALWAYS that the Contractor shall have no responsibility with regard to such works or articles unless he shall have Previously approved the sub-Contractor and/ or the material or plant to be supplied.

27. **Certificate of Engineer:-** Every application to the Engineer for a certificate must be accompanied by a detailed invoice (in duplicate) setting forth in the order of the Schedule of Prices, particulars of the plant supplied and the certificate as to such plant as in reasonable opinion of the Engineer, in accordance with the Contractor shall be issued with in fourteen days of the application for the same as is reasonable necessary or communication with the site.

The Engineer may, by any certificate, make any correction or modification in any previous certificate which shall have been issued by him and payment shall be regulated and adjusted accordingly.

28. **Due Date of Payment:-** Payment shall be due and payable by the Purchaser in accordance with the previous of clause 25 hereof at the end of month following that in which invoices for the amounts due together with necessary documents are received by the Purchaser, provided that the Purchaser shall not be bound to make any payment under clause (a) of clause 25 unless the amount of such payment represents at least 8% of the total Contract value of the plant.

29. **Certificate not to effect right of the Purchaser or Contractor:-**

(1) No certificate of the Engineer on account, not any sum paid on account by the Purchaser, not any extension of time granted under clause 31 shall affect or prejudice the rights of the Purchaser, against the Contractor, of his obligation for the due performance of the Contract, or be interpreted as approval of the work or of the material supplied.

(2) No certificate of the Engineer shall created liability in the Purchaser to pay for any alteration, amendments, variations or additions not ordered in writing by the Engineer, or absolute the Contractor of his liability for the payment of damages whether due ,ascertained ,or certified or not or of any sum against the payment of which he is bound to indemnify the Purchaser, not shall any such certificate nor the acceptance by him of any sum paid on account or otherwise affect or prejudice the rights of the Contractor against the Purchaser, either under this agreements or under the law.

30. **Suspension of the Work:-** The Purchaser shall pay to the Contractor all reasonable expenses, incurred by the Contractor by reasons of suspension of the manufacture of plant or delay in shipment by order in writing of the Purchaser or the Engineer unless such suspension or delay shall be due to some default on the part of the Contractor or Sub-Contractor.

31. **Extension of time for Completion:-** The time given to the Contractor for despatch, delivery, erection or completion, as the case shall be reckoned from the date of receipt by the Contractor of the order, together with all necessary information and drawings, to enable the work to be put in hand.

In all cases in which progress shall be delayed by strikes, lockouts, fire, accidents, defective materials delays in approval of drawings or any cause whatsoever beyond the reasonable control of the contractor, and whether such delay or impediment shall occur before or after the time or extended time despatch, erection or completion, a reasonable extension of time shall be granted.

32. **Price Reduction:-** If the Contractor shall fail in the due performance of his Contract with in time fixed by the contract or any extension thereof, the Contractor agrees to accept a reduction of the Contract price by half percent per week reckoned on the contract value of such portion only of the plant as can not , in consequence of the delay, be used commercially and efficiently during each week between appointed or extended time as the case may be , and the actual time of acceptance under clause 35, and such reduction shall be in full satisfaction on the Contractor's liability for delay, but shall not in any case exceed 10% of the Contract value of such portion of the plant.

33. **Tests on Completion :-** Whenever possible all tests shall be carried out before shipment, should however, it is necessary for the final tests as to performance and guarantees to be held over until the plant is erected, at site, they shall one month of the completion of erection. If the result of these tests shall not come within the margin specified, the tests shall if required, be repeated within one month from the plant is ready for re-test and the Contractor shall re-pay to the Purchaser all reasonable expenses to which he may be put by such tests.

34. **Rejection of defective plant:-** If the completed plant or any portion thereof, before it is taken over under clause 35, be found to be defective, or fails to fulfill the requirements of the Contract, the Engineer shall give the Contractors notice setting forth particulars of such defects or failure and the Contractor shall forthwith make the defect good or after the same to make it comply with the requirements of the contract. If the Contractor fails to do so within a reasonable time the Purchase may reject and replace, at the cost of the Contractor, the whole or any portion of the plant , as the case may be , which is defective or fails to fulfill the requirements of the Contract. Such replacement shall be carried out by the Purchaser with in a reasonable time and a reasonable price, and where reasonably possible to the same specification and under competitive conditions. In the case of such replacement by the Purchaser the Contractor shall be liable to pay the Purchaser the extra cost if any, of such replacement delivered and/ or erected as provided for in the original Contract, extra cost being the ascertained difference between the price paid by the Purchaser, under the provisions above mentioned, for such replacement and the contract price for the plant, so replaced and also to repay any sum paid by the Purchaser to the Contractor, in respect of such defective plant. If the Purchaser does not so replace the reject plant with in a reasonable time, the Contractor shall be liable only to repay to the Purchaser all monies paid by the Purchaser to him in respect of such plant .

In the event of such rejection, the Purchaser shall be entitled to the use of the plant in a reasonable and proper manner for a time reasonably sufficient to unable him to obtain other replacement plant. During the period the rejected plant is used commercially the Contractor shall be entitled to a reasonable sum as payment for such use.

35. **Taking over:-** Where the specification calls for performance test before shipment and these have been successfully carried out, the plant shall be accepted and taken over when it has been satisfactorily put in to operation, whichever shall be the earlier and the Engineer shall forthwith issue a Taking over certificate. In the event of final or any out standing tests being held over until the plant is erected such , taking over certificate shall be issued subject to the results of such final or outstanding tests shall be carried out in accordance with clause 33.

When the specification calls for tests on site the plant shall taken over and the taking over Certificate issued immediately after such tests have been satisfactorily carried out.

If for any reason other than the default of the Contractor such last mentioned tests on site shall not be carried out with in one month of notice by the contractor to purchaser of the plant being ready for test the plant shall be deemed to have been taken over as on the last day of such period and payments due to the Contractor on taking over shall be made, but nevertheless the Contractor shall if called upon so to do by the Purchaser, but at the Purchaser's expense, make the said tests during the maintenance period and accept as aforesaid under the same obligations as specified in clause 33.

The Engineer shall not delay the issue of any, Taking over Certificate completed by this clause on account of minor deficiencies of material or defects in the plant which do not materially effect the commercial use thereof provided that the Contractor shall undertake to make good the same in due course.

36. **Maintenance:-** For a period of 12 (twelve) calendar months commencing immediately upon the setting to work of the plant is taken over is deemed to have been Taken over clause 35 (called the maintenance), the plant or 18 months from the date of receipt of equipment by the Purchase at site whichever is earlier called (" the Maintenance Period") the Contractor shall remain liable to replace any defective parts that may develop in plants of his own manufacture or those of sub- contractor's approved under clause 6, under conditions provided for by the Contract under proper use and arising solely from faulty design, materials or workmanship: PROVIDED ALWAYS that such defective parts as are not repairable at site and are not essential in the meantime to the maintenance in commercial use of the plant, are promptly returned to the Contractor's works at the expense of the Contractor unless otherwise arranged.

If it becomes necessary for the contractor to replace or renew any defective parts of the plant under this clause, the provisions of the first paragraph of this clause shall apply to the parts of the plant so replaced or renewed until the expiration of six months from the date of such replacement or renewal or until the end of the above mentioned period of twelve months, whichever may be the later.

If any defect be not remedied within a reasonable time, the purchaser may proceed to do work at the Contractor's risk and expense, but without prejudice to any other rights which the Purchaser may have against the Contractor in respect of such defects.

The repaired or new parts will be delivered in accordance with clause 10. The Contractor shall bear reasonable cost repairs carried out on his behalf at site.

At the end of the Maintenance period the Contractor's liability shall cease . IN respect of goods not covered by the first paragraph of this clause, the purchaser shall be entitled to the benefit of any guarantee given to the Contractor by the original supplier or manufacturer of such goods.

37. **Regulation of Local Authorities:-** The Purchaser shall throughout the Continuance of the Contract and in respect of matters arising in the performance thereof, serve all notice and obtain all consents, way-leaves, approvals, and permission required in connection with the regulations and by laws of any local of other authority which shall be applicable to the works. All works shall be executed in accordance with the Indian Electricity Rules 1956, and any statutory modifications thereof wherever applicable unless otherwise agreed to in writing by the Engineer.

38. **Arbitration:-** If any dispute, or difference or controversy shall at any time arise between the contractor on the one hand and the U.P.Power Corporation Limited and the Engineer of the contract or the other touching the contract, or as to the true construction meaning and intent or any part or condition of , or payment for the same , or as to the true intent,
meaning, interpretation, construction or effect of the clauses of contract, specification or drawings or any of them, or as to any thing to be done, committed or suffered in pursuance of the contact of specifications or as to the mode of carrying the contract in to effect, or as to the breach of alleged breach, or as to obviating or compensating for the commission of any such breach, or as to any other matter or thing, whatsoever connected with or arising out of the contact and whether before or during the progress or after the completion of the contract, such question, difference or dispute shall be referred for adjudication to the Chairman, U.P.Power Corporation Limited .or to any other person nominated by him in this behalf and h9is decision in writing shall be final , binding and conclusive. This submission shall be deemed to be a submission to arbitration with in the meaning of the Indian Arbitration Act 1940 or any statutory thereof The arbitrator may from time to time with consent of the parties enlarge the time for making and publishing the award.

Upon every or any such reference, the costs of, or incidental to, the reference and award respectively shall be in the discretion of the arbitrator, who shall be competent to determine the amount thereof or direct the same to be taxed as between solicitor and clients or as between party and to direct by whom and to whom and in what manner the same shall be borne and paid.

Work under the contract shall, if reasonably, possible, continue during the Arbitration proceedings, and no payments due or payable by the Board shall be with held on account of such proceeding.

39. **Construction of contract:-** The contract shall in all respect be construed and operated as a Contract as define in the Indian Contract Act 1872, and all payments there under be made in rupees unless otherwise specified.

40. **Marginal Notes:-** The marginal note to any clause of this Contract shall not affect or control the construction of such clause.

GENERAL CONDITIONS

1. SCOPE OF WORK :

The scope of the work covers the manufacturing, testing and delivery of material of execution of work or both, for destination to various 400/220/132 KV S/S in ETC Agra strictly as per specification as detailed in the Technical Specifications enclosed.

2. PROJECT DATA :

(a) LOCATION :

Various 400/220/132 KV S/S Under Elect. Trans. Circle, Agra.

(b) ALTITUDE :

Not exceeding 1000M

(c) CLIMATIC CONDITIONS

(i) Design maxm. ambinent Temp. - 50°C

(ii) Maximum Temp. daily ambient in shade - 47°C

(iii) Minimum temp. attained an object exposed to subn -65°C

(iv) Minimum ambient temp. in shade - 0°C

(v) Relative humidity - 100% max.

(vi) Wind load -195 Kg/sqm.

(vii) Scismic level - 0.3 g

(viii) Average annual rainfall - 1200mm

3. MATERIAL AND WORKMANSHIP :

The entire supply of material/execution of work shall have to be done observing strict quality control in line with various drawings & technical specifications.

Any sub-standard material/work supplied/done shall not be acceptable in any case. All the material supplied shall be of best quality & capable of satisfactory operation under the clatibumid tropical condition mentioned at Sl.No. 2 The workmanship shall be of highest grade and entire manufacturing shall be in accordance with the best modern engineering practices.

4. MINOR ACCESSORIES FOR COMPLETION OF SUPPLY/WORK :

The contractor shall supply all such minor accessories and do the minor works which have either not been specifically mentioned in this specification or in the tender submitted and which are essential to complete the supply of work satisfactorily as per technical specifications. No extra payment shall be made on account of this. The nature of minor work/accessories shall be decided by the Engineer.

5. SUBSTANDRD WORK :

In case of execution of work, any work of part thereof not being found as per technical specification shall not be accepted. The contractor shall have to do the defective part of work again at his own cost. The cost of any test as ordered by the Engineer to ascertain the proper quality of work shall be born by contractor. In this connection the decision of Engineer shall be final. The JE & AE during their supervision shall ensure that such thing does not happen.

6. T&P :

All T&P required for proper execution of works shall be arranged by the contractor himself, at his own cost.

However any special T&P as specified in contract and necessary for completion of work can be had from the Dept. on request free of charge. But non-availability of any such T&P shall not absolve the contractor of his responsibility to complete the work. No extra payment shall be made on account of this.

7. LABOUR :

All types of labour, skilled & unskilled shall be arranged by the contractor at his own cost. In this connection department does not take any responsibility.

However, if at any stage it is found that proper skilled personnel has not been deployed by the contractor for the work he has to withdraw the unskilled labour doing the skilled job and deploy skilled personnel meant for doing the job. Also the person deployed by the contractor found indulging in the act of union, indiscipline or any thing objectionable, shall be removed from site if asked to do so by Engineer.

8. ELECTRICITY RULE :

All construction work shall be carried out as per relevant provision of Indian Electricity Rule 1856 and Indian Electricity Act, 1910 or any amendment thereof. Technical specification of the contract and any other manual referred to therein shall be strictly adhered to.

9. SAFETY :

All safety rules shall be strictly observed by the contractor during the entire period of execution of work/supply of material.

However in case of any major or minor accident, the contractor shall be wholly responsible for all consequences arising thereof including payment of compensation under "Workers" compensation Act and the department shall is no way be responsible of this JE & AE shall ensure that at no level the safety rules are violated.

10. ELECTRICITY :

One point connection, required, shall be given to contractor free of cost lighting and other works that he may require for proper execution of work or for doing any minor modification in the material supplied necessitated due to wrong interpretation of drawing/technical specification or for any reason thereof.

11. ACCOMODATION :

No accommodation shall be provided by the department at site for housing of labour & material.

However the contractor can make his own temporary arrangement at place as decided by Engineer at site.

12. STORAGE OF MATERIAL :

All the construction material as an when received shall be handed over to contractor by the concerned J.E. on verification of the invoice of same immediately. The contractor shall make his own arrangement to store it properly till the completion of work. Without verification of invoice no material shall be handed over to J.E. otherwise he shall be personally responsible for any loss or damage.

13. WATCH & WARD :

Round the clock watch & ward of material shall be done by the contractor at his own cost. For this he will deploy separate security gang other than regular gang. Department does not take any responsibility in this regard.

14. THEFT & LOSSES:

In case of any theft & losses or material duly handed over to contractor, he shall be fully responsible for the same. Necessary FIR shall be lodged by him with the concerning Police Station. And in case of losses so incurred, not having been recovered by Police, the recovery of same shall be made from the contractor's pending bill and in case the recovery being found in excess of all claims of the contractor arising out of this contractor, the same shall be recovered from bills of other contract in the Dn. or from other Dn. of UPPTCl.

15. DEVIATION IN DRAWING:

No deviation in approved enclosed drawing & layout shall be made without the prior approval of the Engineer. Any such deviation made by contractor shall be his personal responsibility and all such corrections as directed by Engineer shall be done at contractor's cost. In case of any minor deviation in drawing is required for supply/execution of material/work, it should be immediately brought to the notice of the Engineer in writing through AE or directly where upon necessary correction shall be issued.

16. WASTAGE :

All out efforts shall be made to have minimum wastage in material handed over to contractor for execution of work or for making supply. However wastage shall only be allowed as given in special condition of the contractor.

17. INSPECTION AND TESTING :

(a) The supplier shall furnish the routine manufacturer's factory test certificate or from the Govt. approved test lab if asked for the test carried out during the manufacturing in accordance with the relevant standard specification or ISS on the subject.

(b) The authorised representative of the purchaser shall have all reasonable time access to the work and premises of the supplier to inspect the work. The supplier shall provide all necessary facilities for carrying out such inspection and test etc. without any extra cost.

(c) The supplier shall intimate at least 7 days in advance about readyness of material to be despatched to enable the purchase to depute his repesentative for inspection.

(d) No material shall be despatched without inspection if it is compulsory as per clause mentioned in the order placed.

(e) The purchaser reserve his right to get the material tested from any other Govt. approved lab at the cost of supplier if the results are not found satisfactorily or the material being found defective.

18 PACKING AND MARKING :

The equipment/material and its accessories shall be packed in accordance with the manufacturer's standard practice in suitable size of packing cases worthly of Rail/Road transport and should be properly marked consigned to concerned Executive Engineer under Electry. Trans. Circle, Agra.

19. AFTER SALES SERVICE :

The equipment supplied against this order shall be attended to by the supplier when ever referred to on priority at your cost within the guarantee/warantee period.

20. PUMPHLETS AND LITERATURE :

The pumphlets and literature regarding material supplied shall be furnished by the supplier which will show it principle of working, Dos & Don't, precautions required in handling, instructions for proper use etc., at no extra cost in triplicate.

21. DEMONSTRATION :

The successful demonstration of equipment supplied shall have to be done at Electy. Trans. Circle, Agra by firm's representative at no extra cost, if it is ordered by the Dy. General Manager.

22. REPLACEMENT OF DEFECTIVE MATERIAL :

Any equipment or part thereof that develops defects not disclosed prior to the final acceptance of material but are disclosed within guarantee/warrantee period shall be replaced by the supplier free of cost & expenses, for the transportation and other incidential charges for such replacements shall be born by the supplier.

23. FORCE MAJURE :

Due to force majure reasons which shall include, acts of God, acts of public enemy, wars blockages, insurrection, riots, epidemics, land slides, earthquakes, storm, lightening, floods, washouts, civil disturbances, exploration, strike and any other similar events beyond the control of the contractor, if written notice is given within 14 days from occurance, the contractural obligations shall remain suspended till the force majure continues.

24. PERFORMANCE GUARANTEE :

The successful tenderer shall guarnatee among other things the following -

(a) The quality & strength of material used.

(b) Safe electrical & mechanical stresses on all parts of equipment under specified condition in para 'Project Data'.

(c) The material shall be guaranteed for satisfactory operation for a period of 12 months from the date of supply or commissioning which ever is earlier otherwise stated, different elsewhere in order.

(d) In case the guarantee/warantee of equipment is more than that mentioned at 'C' as per manufacturer, then this will prevail.

(e) In case of execution of work the performance shall be watched for at least 3 months from the date of completion of work unless otherwise started elsewhere in the contract.

25. VARIATION :

(a) The quantity mentioned in the bill of quantity may vary by 10% variation.

(b) While determining the ± 10% variation if the total values of the contract does not exceed the limit mentioned. The variation in the individual item of work/material may exceed the limit, but variation in so case will result in change of the value of contract more than ± 10%.

(c) In case of variation exceeding the limit mentioned it should be immediately brought to the notice of Engineer for further action.

(d) The rates will remain firm upto ± 25% variation in total value of the contract beyond which the price variation formual shall be submitted by the contractor.

26. CONSUMPTION STATEMENT :

The contractor shall submit consumption statement of material every month during the completion to JE or the JE himself will prepare the consumption statement on the basis of daily supervision of work & get it signed by the contractor. Who after checking it will issue that much material to work every month. After completion of work the contractor shall return the balance material to concerned JE after proper receipt & give the final account.

Any loss after taking into a/c the wastage shall be recovered from contractor at the issue rate as decided by the Engineer.

27. SAMPLE :

Whenever required, the tenderer will submit the sample material/equipment to be supplied at his own cost. Samples of unsuccessful tenderers shall be returned provided the same is not damaged in transit. Such sample shall be collected by the contractor from the office of concerned Executive Engineer. However the sample of successful tenderer shall be retained in office till the supply is completed to full satisfaction.

28 INSURANCE :

The responsibility to maintain adequate insurance coverage at all times during period of contract for safety of staff deployed and material handed over shall be that of contractor alone. The contractor shall also take necessary insurance to idemnity third party risk arising out of work to be done by him at his own cost. The department shall not be responsible in any way in case of any mishappening. The risk covered under insurance shall be losses damage in transit, theft, pilferage accident of all kind. The contractor shall provide with copy of all insurance policies & documents if demanded by Engineer. If the contractor does not comply with this, he shall be doing at his own cost.

29. SUPERVISION :

Executive Engineer, Electy Transmission Division – I, II, III Agra , Firozabad, 400 KV S/S Div. Agra & 765 KV S/S Division Agra / Sub-Divisional Officer of the concerned Transmission Division shall be over all incharge of supervision of each and every work of this contract. JE entrusted to get the work done shall personally ensures that the execution is done exclusively as per specification of contract. In case of any deviation he will immeidately write to contractor under intimation to SDO concerned. For any poor workmanship Junior Engineer and Sub-Divisional Officer shall be personally responsible.

30. ENGINEER :

Superintending Engineer, Electricity Transmission Circle, Agra shall be Engineer of this contract.

31. RECORDING MEASUREMENT :

As soon as any work is completed or material received and checked its measurement shall be recorded in the MB by JE immediately without waiting for bills to be raised by the contractor. Sub-Divisional Officer will also ensure that Junior Engineer records all measurement timely and if he does not do so, he will take all actions as deemed fit under intimation to this office. Issue of material on monthly basis to work shall be ensured by Junior Engineer and Sub-Divisional Officer. In case of any dispute in measurement and the contractor not agree with it, he will immediately bring the matter to the notice of SDO or the Engineer giving his reasons for in correct measurement.

32. VERIFICATION OF BILLS :

After the work/supply has been satisfactorily completed as per specifications and measurement recorded in the MB, the bill duly verified by JE and SDO shall be submitted in office through a covering letter within 7 days or earlier from the submission of bill. Any delay beyond that shall have to be justified by JE & SDO in the coverning letter. There should not be any substantial gap between the date of verification of bills in MB and its submission in the office by SDO.

33. DISPUTE :

Any dispute arising out of this contract shall be under the jurisdiction of local courts at Agra and High Court at Allahabad. No other courts shall have jurisdiction to entertain the same.

34. OTHER TERMS & CONDITIONS :

The other terms and conditions shall be governed as per general terms and conditions of Form “B” in case of supply of material and Form “A” in case of execution of work, copy enclosed.

FINANCIAL CONDITIONS

1. PRICE :

(a) The prices quoted should be on firm basis and F.O.R. destination concerned 400KV/220KV/132 Sub-Station under Electy. Trans. Circle, Agra as mentioned in the contract.
(b) The rates quoted shall include the following :
(i) Packing and forwarding charges.
(ii) Insurance charges
(iii) Freight charges
(iv) All duties and taxes except Sales Tax which if levied shall be stated separately.
(c) Even though composite firm price is quoted the tenderer shall also indicate separately the charges on account of freight. Insurance, duties and taxes extra as included in the quoted price.
(d) It shall be the responsibility of tenderer to keep himself informed of correct rate of duties and taxes levied on the material at the time of tendering.\
(e) The rates/prices shall be quoted in manner as desired in bill of material/schedule of price.
(f) Any tender containing prices not quoted in the manner prescribed under the above clause is liable to be ignored.
(g) No representative against the enhancement of rates, once accepted shall be considered.

2. STATUTORY DUTIES AND TAXES :

(a) GST :-

GST shall be paid extra if legally applicable .

(b) INCOME TAX :

The contractor shall be liable and responsible for payment of such taxes if attracted under the provision of law.

3. SECURITY DEPOSIT:

(a) In order to secure/assure fulfillment of the contract, the successful tenderer, upon receipt of preliminary acceptance letter/detailed work order as the case may be, shall furnish within 15 days, a security amount equivalent to 1 % of the contract value in the form of FDR/CDR/TDR/RTGS/NEFT in favor of Executive Engineer (A) Electricity Transmission Circle. Agra. The Earnest Money deposit by the contractor amounting to Rs. …… in shape of UTR No……..……dt…….. from the …… is here by detained in this office as a part of above security amount & remaining amount of Rs…… shall be deposited by the contractor in this circle in the name Executive Engineer (A) Electricity Transmission Circle. Agra, in shape of FDR/CDR from any scheduled Bank.

(b) The amount of Earnest money shall be released after 3 months from the date of successful completion of supply/work.

(c) The security money shall be forfeited either in whole or in part at the absolute discretion of the Engineer, if the contractor fails or neglect to observe or perform any his obligation under the contract.

4. COMPLETION PERIOD :

A. EXECUTION OF WORK :

(a) In case of execution of various work contract, the completion period shall be normally reckoned from the date of handing over the material, which is to be supplied by the department for execution of the particular work.

In no case, the handing over of complete material in advance shall be the pre condition for starting the work.

(c) Material as and when received shall be handed over to contractor at Electricity Transmission Division and the contractor shall immediately start the execution of work if it can be done as per bill of material from the material handed over.

(d) If the execution of certain part of work is delayed on account of non-availability of material to contractor by the deptt. that delay shall not be treated as delay on part of contract.

(e) The work shall be completed within.....days (Subject to availability of Shut Down) from the date of executing the agreement or the letter of intent issued to take up the work which ever is earlier.

5. DELAY IN DELIVERY :

(a) Time is the essence of any contractor. Should the contractor fails to delivery the material or execute the work within specified time schedule for completion of supply/work, a penalty @ 1/2% per week or part thereof subject to maximum of 10% shall be deducted on the value of incomplete supply/work.

(b) If the contractor fails to supply the material/execute to work after expiry of time as given in the notice served to contractor, the Engineer shall purchase or get the work executed from other agency and the excess expenditure so incurred in completion of balance supply/work shall be recovered from the contractor's pending bill against this agreement or any other else.

(c) Any financial liability arising from and consequent upon failure of the contractor to adhere to the stipulated delivery schedule shall be to the contractor's account.

6. DESPATCH OF MATERIAL:

(A) BY RAILWAY:

(a) In case of dispatch of material by Railway, it should be consigned to Concerned Executive Engineer and the documents should be routed through our banker Bank of the concerned division, which will be intimated by the Executive Engineer, and one copy to sent to concerned Executive Engineer under registered cover.

(b) A telephonic intimation in advance about the dispatch of material shall be immediately given to consignee.

(c) While forwarding the dispatch papers to the Bank/Consignee, following certificates should also be enclosed.

"We hereby affirm, state and certify that the articles or goods dispatched to you through railway receipt No.....x..... dated.....x.....has actually been dispatched and are exactly of the same nature and description as per your order No.....x.....dated.....x.....and other documents value of the said material is not less than the amount entered in the invoices.

We also affirm & state that in case the material, on taking delivery is not found as per order, then such a supply shall be deemed to be breach of trust on our part and you shall be liberty not only to terminate the contract at our cost and consequences but also to held us liable for any Civil and Criminal action".

(d) Any demurrage & wharfage charges levied consequent upon the failure of the supplier to adhere to any of the specified clause, shall be to the supplier's account.

(e) The shortages/damages shall be intimated with in one month from the date of actual receipt of material to be replaced by contractor free of cost.

(f) The damaged material shall be collected by the contractor at his own cost.

B. BY ROAD TRASNPORT :

(a) In case of despatch by road the material shall be delivered at store of concern Division

(b) Proper receipt of material as and when delivered in what so ever quantity must be taken from the concerning Junior Engineer responsible for receipt of materials.

(c) If the material is unloaded in the Go down of transporter due to any reason, the supplier has to retransform it to store of cencrn Division

7. TERMS OF PAYMENT :

(a) 80% payment shall be made against delivery of material at site and its proper Check

(b) 10% payment shall be released after successful erection as per technical specification

(c) Balance 10% payment shall be made after expiry of 3 Month from the date of testing & commissioning. The performance guarantee so deducted may also be released alternatively against submission of Bank Guarantee of equal amount valid for 3 Month from the date of testing & commissioning.

(d) Payment of EPF/ESI shall be ensured by Executive Engineer Electricity Transmission Division I, II, III Agra , Firozabad, 400 KV S/S Div. Agra & 765 KV S/S Division Agra

ALTERNATIVELY

10% payment can be released against bank guarantee of equal amount in the approved proforma by a National Bank valid for a period of 3 months from the date of completion of work.

(c) Running payment of less than Rs. 20000/- shall not be released unless specifically approved by Engineer. However the last running bill shall not be subjected to this condition.

C. WORK ENVOLVING SUPPLY AND ERECTION :

(a) 90% payment of the cost of material and plus 100% ST shall be made against despatch document through bank in case of Rail despatch and on receipt of material at site in case of despatch by road transport.

(b) 5% payment shall be made on erection testing and commissioning of the equipments supplied.

(c) 5% payment shall be released after 3 months from the date of commissioning of equipment or immediately alongwith payment as at (b) on submission of Bank Guarantee of equal amount valid for 3 months.

(d) For works involved towards commissioning of equipment supplied and given in the bill of material price schedule separately the payment shall be governed as in case of “Execution of Work” at ‘B”.

8. MODE OF PAYMENT :

(a) All payment shall be made through Account Payee cheques.

(b) Proper receipt of the cheques must be given in the office before the cheque delivered to contractor.

(c) The cheque shall only be delivered to the person having executed the agreement or any authorized representative of the firm with his signature duly attested.

9. WITH HOLDING OF PAYMENT :

The payment can be with held on account of following at the description of engineer.

(a) Defective material/work not rectified.

(b) Claims filed against the contractor.

(c) Damage to another contractor directly employed by the purchaser.

(d) Violation of any contractual obligation on part of the contractor.

(e) Failure by the contractor to make due payment for material or labour employed by him.

(f) In sufficient progress of work.

When the grounds for with holding the payments are removed, payment shall be made without any delay.

Note :- Wherever the words “ Excise Duty (ED),CST, VAT, Service Tax” has been mentioned in the Form should be read the G.S.T.